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the inspector of immigration was not subject to review, and the alien then appealed.

This Court upheld the denial of the writ. The Court interpreted the 1891 Act to preclude judicial review only with respect to questions of fact. *Id.*, at 660. And after interpreting the 1891 Act in this way, the Court found that “the act of 1891 is constitutional.” *Id.*, at 664.

The Court’s narrow interpretation of the 1891 Act’s finality provision meant that the federal courts otherwise retained the full authority granted by the Habeas Corpus Act of 1867 to determine whether an alien was detained in violation of federal law. Turning to that question, the Court held that the only procedural rights of an alien seeking to enter the country are those conferred by statute. “As to such persons,” the Court explained, “the decisions of executive or administrative officers, acting within powers expressly conferred by Congress, are due process of law.” *Id.*, at 660. The Court therefore considered whether the procedures set out in the 1891 Act had been followed, and finding no violation, affirmed the denial of the writ. *Id.*, at 661–664. What is critical for present purposes is that the Court did not hold that the Suspension Clause imposed any limitations on the authority of Congress to restrict the issuance of writs of habeas corpus in immigration matters.

Respondent interprets *Nishimura Ekiu* differently. See Brief for Respondent 13–15. As he reads the decision, the Court interpreted the 1891 Act to preclude review of *all questions* related to an alien’s entitlement to enter the country. Any other interpretation, he contends, would fly in the face of the statutory terms. But, he maintains, the Court held that this limitation violated the Suspension Clause except with respect to questions of fact, and it was for this reason that the Court considered whether the procedures specified by the 1891 Act were followed. In other words, he reads *Nishimura Ekiu* as holding that the 1891 Act’s finality

provision was unconstitutional in most of its applications (*i. e.*, to all questions other than questions of fact).

This interpretation is wrong. The opinion in *Nishimura Ekiu* states unequivocally that “the act of 1891 is constitutional,” 142 U. S., at 664, not that it is constitutional only in part. And if there is any ambiguity in the opinion regarding the Court’s interpretation of the finality provision, the later decision in *Gegiow v. Uhl*, 239 U. S. 3 (1915), left no doubt. What *Nishimura Ekiu* meant, *Gegiow* explained, was that the immigration authorities’ factual findings were conclusive (as *Gegiow* put it, “[t]he conclusiveness of the decisions of immigration officers . . . is conclusiveness upon matters of fact”) and therefore, the Court was “not forbidden by the statute to consider” in a habeas proceeding “whether the reasons” for removing an alien “agree with the requirements of the act.” 239 U. S., at 9. In light of this interpretation, the *Nishimura Ekiu* Court had no occasion to decide whether the Suspension Clause would have tolerated a broader limitation, and there is not so much as a hint in the opinion that the Court considered this question. Indeed, the opinion never even mentions the Suspension Clause, and it is utterly implausible that the Court would hold *sub silentio* that Congress had violated that provision.

Holding that an Act of Congress unconstitutionally suspends the writ of habeas corpus is momentous. See *Boumediene*, 553 U. S., at 773 (noting “the care Congress has taken throughout our Nation’s history” to avoid suspension). The Justices on the Court at the beginning of the finality era had seen historic occasions when the writ was suspended—during the Civil War by President Lincoln and then by Congress, and later during Reconstruction by President Grant. See *Hamdi v. Rumsfeld*, 542 U. S. 507, 563 (2004) (Scalia, J., dissenting) (discussing these events). The suspension of habeas during this era played a prominent role in our constitutional history. See *Ex parte Merryman*, 17 F. Cas. 144, 151–152 (No. 9,487) (CC Md. 1861) (Taney, C. J.); *Ex parte*

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Milligan, 4 Wall. 2, 116, 131 (1866). (Two of the Justices at the beginning of the finality era were on the Court when *Ex parte Milligan* was decided.) The Justices knew a suspension of the writ when they saw one, and it is impossible to believe that the *Nishimura Ekiu* Court identified another occasion when Congress had suspended the writ and based its decision on the Suspension Clause without even mentioning that provision.

The dissent's interpretation of *Nishimura Ekiu* is different from respondent's. According to the dissent, *Nishimura Ekiu* interpreted the 1891 Act as it did based on the doctrine of constitutional avoidance. See *post*, at 179–180. This reading has no support in the Court's opinion, which never mentions the Suspension Clause or the avoidance doctrine and never explains why the Clause would allow Congress to preclude review of factual findings but nothing more. But even if there were some basis for this interpretation, it would not benefit respondent, and that is undoubtedly why he has not made the argument. IIRIRA unequivocally bars habeas review of respondent's claims, see § 1252(e)(2), and he does not argue that it can be read any other way. The avoidance doctrine “has no application in the absence of ambiguity.” *Warger v. Shauers*, 574 U. S. 40, 50 (2014) (internal quotation marks and ellipsis omitted). Thus, if *Nishimura Ekiu*'s interpretation were based on constitutional avoidance, it would still not answer the interpretive question here.

When we look to later finality era cases, any suggestion of a Suspension Clause foundation becomes even less plausible. None of those decisions mention the Suspension Clause or even hint that they are based on that provision, and these omissions are telling. On notable occasions during that time, the writ was suspended—in the Philippines in 1906²³

²³ While the Philippines was a Territory, its government suspended habeas to deal with “‘certain organized bands’” of rebels. *Fisher v. Baker*, 203 U. S. 174, 179–181 (1906) (quoting resolution).

and Hawaii in 1941.²⁴ During World War II, the Court held that “enemy aliens” could utilize habeas “unless there was suspension of the writ.” *In re Yamashita*, 327 U. S. 1, 9 (1946). And the Court invoked the Suspension Clause in holding that the Executive lacked authority to intern a Japanese-American citizen. See *Ex parte Endo*, 323 U. S. 283, 297–299 (1944). If the Justices during that time had thought that the Suspension Clause provided the authority they were exercising in the many cases involving habeas petitions by aliens detained prior to entry, it is hard to believe that this important fact would have escaped mention.

Respondent suggests that *Nishimura Ekiu* cannot have interpreted the 1891 Act’s finality provision to apply only to factual questions because the statutory text categorically bars all review. The important question here, however, is *what the Court did* in *Nishimura Ekiu*, not whether its interpretation was correct, and in any event, there was a reasonable basis for the Court’s interpretation.

The determinations that the immigration officials were required to make under the 1891 Act were overwhelmingly factual in nature. The determination in *Nishimura*’s case—that she was likely to become a public charge—seems to have been a pure question of fact, and the other grounds for exclusion under the Act involved questions that were either solely or at least primarily factual in nature.

If we were now called upon to determine the meaning of a provision like the finality provision in the 1891 Act, our precedents would provide the basis for an argument in favor of the interpretation that the *Nishimura Ekiu* Court reached. The presumption in favor of judicial review, see, e. g., *Guerrero-Lasprilla v. Barr*, 589 U. S. 221, 229 (2020); *Nasrallah v. Barr*, 590 U. S. 573, 581–583 (2020), could be invoked. So could the rule that “[i]mplications from statu-

²⁴ The Governor of Hawaii suspended habeas, with President Roosevelt’s approval, after the attack on Pearl Harbor. See *Duncan v. Kahanamoku*, 327 U. S. 304, 307–308, 324 (1946).

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tory text or legislative history are not sufficient to repeal habeas jurisdiction.” *St. Cyr*, 533 U. S., at 299; accord, *Ex parte Yenger*, 8 Wall. 85, 105 (1869). Thus, respondent’s interpretation of the decision in *Nishimura Ekiu* is wrong, and the same is true of his understanding of the later finality era cases.

Rather than relying on the Suspension Clause, those cases simply involved the exercise of the authority conferred by the habeas statute then in effect. This was true of *Nishimura Ekiu*, *Gegiw*, and every other finality era case that respondent cites in support of his Suspension Clause argument. See, e. g., *Gonzales v. Williams*, 192 U. S. 1 (1904); *Yee Won v. White*, 256 U. S. 399 (1921); *Tod v. Waldman*, 266 U. S. 113 (1924); *United States ex rel. Polymeris v. Trudell*, 284 U. S. 279 (1932); *United States ex rel. Johnson v. Shaughnessy*, 336 U. S. 806 (1949); *United States ex rel. Knauff v. Shaughnessy*, 338 U. S. 537 (1950); *Shaughnessy v. United States ex rel. Mezei*, 345 U. S. 206 (1953); *United States ex rel. Accardi v. Shaughnessy*, 347 U. S. 260 (1954). Some finality era cases presented pure questions of law, while others involved the application of a legal test to particular facts. At least one involved an alien who had entered illegally. See *id.*, at 262. But none was based on the Suspension Clause. No majority opinion even mentioned the Suspension Clause.²⁵ Indeed, any mention of the Constitution was rare—and unhelpful to respondent’s arguments here.²⁶ And in all the cited cases concerning aliens detained at entry, unlike the case now before us, what was sought—and the only

²⁵ In a concurrence in *United States ex rel. Turner v. Williams*, 194 U. S. 279 (1904), Justice Brewer stated without elaboration and without citing any authority that the Suspension Clause prohibits Congress from “oust[ing] the courts from the duty of inquiry respecting both law and facts” in habeas cases. *Id.*, at 295. No other Justice joined that opinion.

²⁶ In *Fong Yue Ting v. United States*, 149 U. S. 698, 713 (1893), and many other cases, the Court noted that the Constitution gives Congress plenary power to set requirements for admission.

relief considered—was release. Indeed, in an early finality era case, the Court took pains to note that it did not “express any opinion” on whether an alien was entitled to enter. *Lem Moon Sing v. United States*, 158 U. S. 538, 549 (1895).

Like the dissent, respondent makes much of certain statements in *Heikkila v. Barber*, 345 U. S. 229 (1953), which he interprets to substantiate his interpretation of *Nishimura Ekiu* and the subsequent entry cases discussed above. But he takes these statements out of context and reads far too much into them. *Heikkila* was not a habeas case, and the question before the Court was whether a deportation order was reviewable under the Administrative Procedure Act (APA). The Court held that the order was not subject to APA review because the Immigration Act of 1917 foreclosed “judicial review”—as opposed to review in habeas. 345 U. S., at 234–235. Nothing in *Heikkila* suggested that the 1891 Act had been found to be partly unconstitutional, and *Heikkila* certainly did not address the scope of the writ of habeas corpus in 1789.

In sum, the Court exercised habeas jurisdiction in the finality era cases because the habeas statute conferred that authority, not because it was required by the Suspension Clause. As a result, these cases cannot support respondent’s argument that the writ of habeas corpus as it was understood when the Constitution was adopted would have allowed him to claim the right to administrative and judicial review while still in custody.

C

We come, finally, to the more recent cases on which respondent relies. The most recent, *Boumediene*, is not about immigration at all. It held that suspected foreign terrorists could challenge their detention at the naval base in Guantanamo Bay, Cuba. They had been “apprehended on the battlefield in Afghanistan” and elsewhere, not while crossing the border. 553 U. S., at 734. They sought only to be released

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from Guantanamo, not to enter this country. See, *e. g.*, Brief for Petitioner Al Odah et al. in *Al Odah v. United States*, decided with *Boumediene v. Bush*, O. T. 2007, No. 06–1196, p. 39 (arguing that “habeas contemplates but one remedy,” “release”). And nothing in the Court’s discussion of the Suspension Clause suggested that they could have used habeas as a means of gaining entry. Rather, the Court reaffirmed that release is the habeas remedy though not the “exclusive” result of every writ, given that it is often “appropriate” to allow the executive to cure defects in a detention. 553 U. S., at 779.

Respondent’s other recent case is *St. Cyr*, in which the Court’s pertinent holding rejected the argument that certain provisions of IIRIRA and the Antiterrorism and Effective Death Penalty Act of 1996 that did not refer expressly to habeas should nevertheless be interpreted as stripping the authority conferred by the habeas statute. In refusing to adopt that interpretation, the Court enlisted a quartet of interpretive canons: “the strong presumption in favor of judicial review of administrative action,” “the longstanding rule requiring a clear statement of congressional intent to repeal habeas jurisdiction,” the rule that a “clear indication” of congressional intent is expected when a proposed interpretation would push “the outer limits of Congress’ power,” and the canon of constitutional avoidance. 533 U. S., at 298–300. In connection with this final canon, the Court observed: “Because of [the Suspension] Clause, some ‘judicial intervention in deportation cases’ is unquestionably ‘required by the Constitution.’” *Id.*, at 300 (quoting *Heikkila*, 345 U. S., at 235).

Respondent pounces on this statement, but like the *Heikkila* statement on which it relies, it does nothing for him. The writ of habeas corpus as it existed at common law provided a vehicle to challenge all manner of detention by government officials, and the Court had held long before that the writ could be invoked by aliens already in the country who were held in custody pending deportation. *St. Cyr* re-

affirmed these propositions, and this statement in *St. Cyr* does not signify approval of respondent's very different attempted use of the writ, which the Court did not consider.²⁷

IV

In addition to his Suspension Clause argument, respondent contends that IIRIRA violates his right to due process by precluding judicial review of his allegedly flawed credible-fear proceeding. Brief for Respondent 38–45. The Ninth Circuit agreed, holding that respondent “had a constitutional right to expedited removal proceedings that conformed to the dictates of due process.” 917 F. 3d, at 1111, n. 15 (internal quotation marks omitted). And the Ninth Circuit acknowledged, *ibid.*, that this holding conflicted with the Third Circuit's decision upholding § 1252(e)(2) on the ground that applicants for admission lack due process rights regarding their applications, see *Castro*, 835 F. 3d, at 445–446. Since due process provided an independent ground for the decision below and since respondent urges us to affirm on this ground, it is hard to understand the dissent's argument that the due process issue was not “seriously in dispute below” or that it is somehow improper for us to decide the issue. *Post*, at 190.

Nor is the dissent correct in defending the Ninth Circuit's holding. That holding is contrary to more than a century of precedent. In 1892, the Court wrote that as to “foreigners who have never been naturalized, nor acquired any domicil or residence within the United States, nor even been admitted into the country pursuant to law,” “the decisions of executive or administrative officers, acting within powers expressly conferred by Congress, are due process of law.” *Nishimura Ekiu*, 142 U. S., at 660. Since then, the Court has often reiterated this important rule. See, *e. g.*, *Knauff*,

²⁷ The Government notes other distinctions between *St. Cyr* and this case, including that the alien in *St. Cyr* raised a pure question of law, while respondent raises at best a mixed question of law and fact. We have no need to consider these distinctions.

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338 U. S., at 544 (“Whatever the procedure authorized by Congress is, it is due process as far as an alien denied entry is concerned”); *Mezei*, 345 U. S., at 212 (same); *Landon v. Plasencia*, 459 U. S. 21, 32 (1982) (“This Court has long held that an alien seeking initial admission to the United States requests a privilege and has no constitutional rights regarding his application, for the power to admit or exclude aliens is a sovereign prerogative”).

Respondent argues that this rule does not apply to him because he was not taken into custody the instant he attempted to enter the country (as would have been the case had he arrived at a lawful port of entry). Because he succeeded in making it 25 yards into U. S. territory before he was caught, he claims the right to be treated more favorably. The Ninth Circuit agreed with this argument.

We reject it. It disregards the reason for our century-old rule regarding the due process rights of an alien seeking initial entry. That rule rests on fundamental propositions: “[T]he power to admit or exclude aliens is a sovereign prerogative,” *id.*, at 32; the Constitution gives “the political department of the government” plenary authority to decide which aliens to admit, *Nishimura Ekiu*, 142 U. S., at 659; and a concomitant of that power is the power to set the procedures to be followed in determining whether an alien should be admitted, see *Knauff*, 338 U. S., at 544.

This rule would be meaningless if it became inoperative as soon as an arriving alien set foot on U. S. soil. When an alien arrives at a port of entry—for example, an international airport—the alien is on U. S. soil, but the alien is not considered to have entered the country for the purposes of this rule. On the contrary, aliens who arrive at ports of entry—even those paroled elsewhere in the country for years pending removal—are “treated” for due process purposes “as if stopped at the border.” *Mezei*, 345 U. S., at 215; see *Leng May Ma v. Barber*, 357 U. S. 185, 188–190 (1958); *Kaplan v. Tod*, 267 U. S. 228, 230–231 (1925).

The same must be true of an alien like respondent. As previously noted, an alien who tries to enter the country illegally is treated as an “applicant for admission,” § 1225(a)(1), and an alien who is detained shortly after unlawful entry cannot be said to have “effected an entry,” *Zadvydas v. Davis*, 533 U.S. 678, 693 (2001). Like an alien detained after arriving at a port of entry, an alien like respondent is “on the threshold.” *Mezei*, 345 U.S., at 212. The rule advocated by respondent and adopted by the Ninth Circuit would undermine the “sovereign prerogative” of governing admission to this country and create a perverse incentive to enter at an unlawful rather than a lawful location. *Plasencia*, 459 U.S., at 32.

For these reasons, an alien in respondent’s position has only those rights regarding admission that Congress has provided by statute. In respondent’s case, Congress provided the right to a “determin[ation]” whether he had “a significant possibility” of “establish[ing] eligibility for asylum,” and he was given that right. §§ 1225(b)(1)(B)(ii), (v). Because the Due Process Clause provides nothing more, it does not require review of that determination or how it was made. As applied here, therefore, § 1252(e)(2) does not violate due process.²⁸

* * *

Because the Ninth Circuit erred in holding that § 1252(e)(2) violates the Suspension Clause and the Due Process Clause,

²⁸ Although respondent, during his interviews with immigration officials, does not appear to have provided any information tying the assault he suffered at the hands of those who arrived at his home in a van to persecution on the basis of ethnicity or political opinion, his counseled petition offers details about “white va[n]” attacks against Tamils in Sri Lanka. App. 25–26 (internal quotation marks omitted). As now portrayed, his assault resembles those incidents. Department officials and immigration judges may reopen cases or reconsider decisions, see 8 CFR §§ 103.5(a)(1), (5), and 1003.23(b)(1), and the Executive always has discretion not to remove, see *AAADC*, 525 U.S., at 483–484.

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we reverse the judgment and remand the case with directions that the application for habeas corpus be dismissed.

It is so ordered.

JUSTICE THOMAS, concurring.

I join the Court’s opinion, which correctly concludes that respondent’s Suspension Clause argument fails because he does not seek a writ of habeas corpus. I write separately to address the original meaning of the Suspension Clause, which guarantees that “[t]he Privilege of the Writ of Habeas Corpus shall not be suspended, unless when in Cases of Rebellion or Invasion the public Safety may require it.” Art. I, § 9, cl. 2. The Founders appear to have understood “[t]he Privilege of the Writ of Habeas Corpus” to guarantee freedom from discretionary detention, and a “suspen[sion]” of that privilege likely meant a statute granting the executive the power to detain without bail or trial based on mere suspicion of a crime or dangerousness. Thus, the expedited removal procedure in the Illegal Immigration Reform and Immigrant Responsibility Act of 1996, 110 Stat. 3009–546, is likely not a suspension.¹

I

The writ of habeas corpus began as a prerogative writ in the Court of King’s Bench in the 16th century. J. Baker, *An Introduction to English Legal History* 157 (5th ed. 2019). Over time, however, it came to be understood both as a right to be free from arbitrary detention and as a procedural writ.

By the end of the 16th century, the English connected the common-law writ of habeas corpus to liberty. Specifically, it was associated with the guarantee in Magna Carta that “[n]o free person (*Nullus liber homo*) shall be taken or imprisoned, or disseised or outlawed or exiled, or in any way

¹ I express no view on the question whether respondent is even entitled to the privilege of the writ as an unadmitted alien.

destroyed . . . except by the lawful judgment of his peers or by the law of the land.” *Id.*, at 157, n. 76, 506. Perhaps most prominently, Edward Coke wrote in his Institutes that “if a man be taken, or committed to prison *contra legem terrae*, against the Law of the land,” then “[h]e may have an *habeas corpus*.” The Second Part of the Institutes of the Laws of England 55 (6th ed. 1681). For Coke, and for the many English (and later Americans) who read his work, “the writ was treated as an aspect of the Charter’s guaranty.” D. Meador, *Habeas Corpus and Magna Carta: Dualism of Power and Liberty* 22 (1966).

This association between habeas corpus and freedom from discretionary detention deepened after 1679 with the Habeas Corpus Act, also known as An Act for the better securing the Liberty of the Subject and for Prevention of Imprisonments beyond the Seas. The statute sought to address “great Delayes” in “criminall or supposed criminall Matters.” 31 Car. 2, ch. 2. It required an officer served with a writ of habeas corpus to produce the prisoner within three days in “any such criminall or supposed criminall Matters.” *Ibid.* It also guaranteed bail to prisoners in cases of felony or high treason if they were not tried within one term of court. *Ibid.* To protect these rights, Parliament created a special statutory remedy: All writs under the Habeas Corpus Act were marked as issuing pursuant to the statute. *Ibid.*; P. Halliday, *Habeas Corpus: From England to Empire* 320 (2010).

Parliament passed the Habeas Corpus Act to curb the power of King Charles II, but it nonetheless came to be seen as a protection for liberty, not just an assertion of the powers of Parliament over the Crown. Henry Care, in the 1774 edition of his widely read treatise *English Liberties*, commented that “before this statute [the common-law writ of habeas corpus] was rendered far less useful than it ought to be, partly by the Judges pretending a power to grant or deny the said writ at their pleasure, in many cases; and especially by the ill practices of Sheriffs and Goalers, by putting the

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prisoner to the charge and trouble of . . . a second and third writ, before they would obey the first.” 1 English Liberties, or the Free-born Subject’s Inheritance 195. The Habeas Corpus Act, he concluded, “provides thus for our liberty.” *Id.*, at 198. William Blackstone put it even more sweepingly, writing that the Habeas Corpus Act “is frequently considered as another *magna carta*.” 3 Commentaries on the Laws of England 135 (1770).

II

The Founders inherited this understanding of habeas corpus. And they enshrined it in the Suspension Clause, which they understood to protect a substantive right.

The language of the Suspension Clause evinces this understanding. The Clause itself does not authorize courts to issue writs of habeas corpus. *INS v. St. Cyr*, 533 U. S. 289, 337 (2001) (Scalia, J., dissenting); *Ex parte Bollman*, 4 Cranch 75, 94 (1807). Nor does it refer simply to the writ of habeas corpus. Rather, it protects the *privilege* of the writ of habeas corpus. The word “privilege” was “used interchangeably with the words ‘rights,’ ‘liberties,’ and ‘freedom,’ and had been since the time of Blackstone.” *McDonald v. Chicago*, 561 U. S. 742, 813 (2010) (THOMAS, J., concurring in part and concurring in judgment). By using this term, the Framers appear to have had a substantive right in mind.

Ratification debates reflect this understanding as well. Future Supreme Court Justice James Iredell said in the North Carolina convention that, “[b]y the privileges of the *habeas corpus*, no man can be confined without inquiry; and if it should appear that he has been committed contrary to law, he must be discharged.” 4 Debates in the Several State Conventions 171 (J. Elliot ed. 1891). Signer of the Constitution James McHenry told the Maryland House of Delegates that “[p]ublic safety may require a suspension of the Habeas Corpus in cases of necessity: when those cases do not exist, the virtuous Citizen will ever be protected in his oppo-

sition to power.” 11 Documentary History of the Ratification of the Constitution 80, 84 (J. Kaminski et al. eds. 2015) (Documentary History).

This understanding is echoed in statements that the Constitution protects the Habeas Corpus Act, the writ of habeas corpus, or simply “the habeas corpus,” all referring to a substantive right. Alexander Hamilton wrote in *The Federalist* No. 83 that “the *habeas corpus* act” was “provided for in the most ample manner in the plan of the convention.” *The Federalist* No. 83, p. 499 (C. Rossiter ed. 1961). Again in No. 84, he wrote that the Constitution “establish[ed] the writ of *habeas corpus*.” *Id.*, No. 84, at 511. In the Pennsylvania ratifying convention, Jasper Yeates said that the Suspension Clause “direct[ed] that the privilege of the *habeas corpus* act shall not be suspended except in times of immediate danger.” 2 Documentary History 434–435 (M. Jensen ed. 1976). In Virginia, Governor Edmund Randolph—a signer and future Attorney General—argued that “the habeas corpus is at least on as secure and good a footing as it is in England” because “[t]hat privilege is secured here by the Constitution.” 9 *id.*, at 1099 (J. Kaminski & G. Saladino eds. 1990). Luther Martin of Maryland wrote that “the general government is to have a *power of suspending* the *habeas corpus act*, in cases of *rebellion* or *invasion*.” *Genuine Information* VIII, reprinted in 15 *id.*, at 434 (J. Kaminski & G. Saladino eds. 1984). In Massachusetts, Theophilus Parsons “made a Loud Speech on the Habeas Corpus act that it will not be in the power of Gov[ern]ment to suspend the act only in time of war.” 7 *id.*, at 1813 (J. Kaminski & G. Saladino eds. 2001). Other speakers and writers made similar references. See A. Tyler, *Habeas Corpus in Wartime* 132–133 (2017) (collecting examples). In sum, it seems that the founding generation viewed the privilege of the writ of habeas corpus as a freedom from arbitrary detention.²

² None of this is to say that the writ of habeas corpus involved a wide-ranging, ever-changing inquiry. As the Court today reaffirms, “the scope of habeas has been tightly regulated by statute, from the Judiciary Act of

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III

The remaining question is what it means for “[t]he Privilege of the Writ of Habeas Corpus” to “be suspended.” U. S. Const., Art. I, § 9, cl. 2. At the founding, suspension was a well-known term that meant “a [t]emporal [s]top of a [m]an’s [r]ight.” N. Bailey, *An Universal Etymological English Dictionary* (22d ed. 1770); see *St. Cyr*, 533 U. S., at 337–338 (Scalia, J., dissenting). In the context of habeas corpus, it appears to have specifically meant a grant of authority to the executive to detain without bail or trial based on suspicion of a crime or dangerousness.

The English understood the term this way. Blackstone called it “the happiness of [the English] constitution” that “the parliament only, or legislative power, . . . can authorize the crown, by suspending the *habeas corpus* act for a short and limited time, to imprison suspected persons without giving any reason for so doing.” 1 *Commentaries on the Laws of England*, at 136. Bills known as suspensions granted broad power to detain based on suspicion of a crime. For

1789 to the present day.” *Ante*, at 126, n. 20. A writ of habeas corpus was “in the nature of a writ of error, to examine the legality of the commitment.” *Ex parte Watkins*, 3 Pet. 193, 202 (1830) (Marshall, C. J.). When an executive detained someone without trial, it allowed a court to “examine into [the] validity” of “the reason for” commitment. 3 W. Blackstone, *Commentaries on the Laws of England* 133 (1770). In cases of detention pursuant to the judgment of a court, “a prisoner seeking a writ of habeas corpus could challenge only the jurisdiction of the court that had rendered the judgment under which he was in custody.” *Wright v. West*, 505 U. S. 277, 285 (1992) (opinion of THOMAS, J.). In both contexts, the writ “played only a procedural role: It issued as of right when a prisoner showed probable cause to believe he was being held illegally . . . and obligated the warden to file a ‘return’ identifying the grounds of imprisonment.” *Jennings v. Stephens*, 574 U. S. 271, 285 (2015) (THOMAS, J., dissenting). When the writ of habeas corpus was granted, it “decided nothing except that there was a case calling for an answer by the gaoler.” Goddard, *A Note on Habeas Corpus*, 65 L. Q. Rev. 30, 34 (1949). “After reviewing the reason so returned, the court could release, bail, or remand the prisoner as appropriate.” J. Baker, *An Introduction to English Legal History* 157 (5th ed. 2019).

example, in 1777, Lord Germaine introduced a bill “to empower his Majesty to secure and detain Persons charged with, or suspected of, the Crime of High Treason committed in North America, or on the High Seas, or the Crime of Piracy.” 19 W. Cobbett, *The Parliamentary History of England* 4 (1814). The bill allowed certain prisoners to be detained “without bail or mainprize”³ and prohibited any “judge or justice of peace” from “bail[ing] or try[ing] any such person or persons, . . . any law, statute, or usage, to the contrary in any wise notwithstanding.” *Id.*, at 5. The text contained no mention of the Habeas Corpus Act, but it nevertheless was referred to as a “suspension of the Habeas Corpus Act.” *Id.*, at 9–10. As one historian has written, suspensions “were officially acts ‘empowering his majesty to apprehend and detain such persons as he shall find cause to suspect’” and to do so “‘without bail or mainprise.’” Halliday, *Habeas Corpus*, at 248.

Americans shared a similar understanding, as evidenced by the suspensions that States passed during the Revolutionary War. “By their common terms,” these suspensions “bestowed authority on state executives to arrest and detain persons preventively based on suspicion of supporting the Crown.” Tyler, *Habeas Corpus in Wartime*, at 111. In 1777, Massachusetts authorized the detention of “any person whom the council shall deem the safety of the Commonwealth requires should be restrained of his personal liberty, or whose enlargement within this state is dangerous thereto” “without bail or mainpri[s][z]e.” 1776–1777 Mass. Acts ch. 45, §§ 1, 3, p. 641. Virginia similarly allowed the Governor and council to detain anyone “whom they may have just cause to suspect of disaffection to the independence of the United States or of attachment to their enemies.” An act for giving certain powers to the governour and council, and

³ Mainprise or mainprize is a “writ ordering the sheriff to take . . . security . . . for the prisoner’s appearance and release the prisoner.” Black’s Law Dictionary 1142 (11th ed. 2019).

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for punishing those who shall oppose the execution of laws, reprinted in 10 W. Hening's Statutes at Large 413–414 (1822). And New York created a board with power “to apprehend and confine or cause to be apprehended or confined . . . all persons whose going at large shall in the judgment of the said commissioners or any three of them appear dangerous to the safety of this State.” An Act appointing commissioners for detecting and defeating conspiracies and declaring their powers (Feb. 5, 1778), 1778 N. Y. Laws ch. 3, pp. 8–9; see also An Act for constituting a Council of Safety (Oct. 11, 1777), 1777 N. J. Laws ch. 40, § 4, p. 85; An Act to Empower the Supreme Executive Council of this Commonwealth to Provide for the Security Thereof in Special Cases Where No Provision Is Already Made by Law (Sept. 6, 1777), ch. 762, § 2, 9 Statutes at Large of Pennsylvania 140 (J. Mitchell & H. Flanders eds. 1903); An Act to punish certain crimes and misdemeanors, and to prevent the growth of toryism, 1777 Md. Laws ch. 20, § 7.⁴

Massachusetts continued using this formula for suspensions under its 1780 Constitution. These suspensions are especially probative because that Constitution contained language similar to the Federal Suspension Clause: “The privilege and benefit of the writ of habeas corpus shall be enjoyed in this Commonwealth in the most free, easy, cheap, expeditious and ample manner; and shall not be suspended by the Legislature, except upon the most urgent and pressing occasions, and for a limited time not exceeding twelve months.” Pt. 2, ch. VI, Art. VII. In response to Shays’ Rebellion, which gained notoriety across the United States, Massachusetts passed “An Act for Suspending the Privilege of the Writ of Habeas Corpus.” It provided that

⁴ It does not appear that it was necessary to expressly mention the availability of the writ in a suspending Act. Some States made express reference to the writ of habeas corpus, see, *e. g.*, ch. 762, § 2, 9 Statutes at Large of Pennsylvania 140, but many did not.

“the Governor, with the advice and consent of the Council, be and he hereby is authorised and empowered . . . to command, and cause to be apprehended, and committed in any Goal, or other safe place, within the Commonwealth, any person or persons whatsoever, whom the Governor and Council, shall deem the safety of the Commonwealth requires should be restrained of their personal liberty, or whose enlargement is dangerous thereto; any Law, Usage or Custom to the contrary notwithstanding.” 1786–1787 Mass. Acts ch. 41, p. 102.

The Act also provided that “any Person who shall be apprehended and imprisoned, as aforesaid, shall be continued in imprisonment, without Bail or Mainprize, until he shall be discharged therefrom by order of the Governor, or of the General Court.” *Id.*, at 103; see also An Act to Suspend the Privilege of the Writ of Habeas Corpus for Six Months (June 27, 1782), 1782–1783 Mass. Acts ch. 2, pp. 6–7. Thus, in a jurisdiction with an analog to the Suspension Clause, a suspension was a grant of power to detain without bail or trial based on suspicion of a crime or dangerousness.

Although the ratification debates are not especially illuminating on the meaning of a suspension, they provide further support for this understanding. Luther Martin wrote that the Government, upon “suspending the habeas corpus act may *seize* upon the persons of those *advocates of freedom*, who have had *virtue* and *resolution* enough to excite the opposition, and may *imprison* them during its pleasure.” Genuine Information VIII, reprinted in 15 Documentary History 434. Another essayist, writing in a Boston newspaper, explained that suspension would allow “the President, or President and Senate, as Congress shall think proper to empower, to take up and confine for any cause, or for any suspicion, or for no cause, perhaps any person, he or they shall think proper.” 5 *id.*, at 712 (J. Kaminski & G. Saladino eds. 1998).

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In sum, a suspension was not necessarily an express limitation on the availability of the writ of habeas corpus. Rather, it appears to have been a grant of power to detain based on suspicion of a crime or dangerousness without bail or trial.

IV

Under this interpretation, 8 U. S. C. § 1252 likely does not suspend the writ of habeas corpus. To be placed in expedited removal, an immigration officer must “determin[e]” that an alien is “inadmissible.” § 1225(b)(1)(A)(i). That determination is based in part on the alien’s lack of valid entry documentation and failure to satisfy a 2-year continuous physical presence requirement, not on mere suspicion or dangerousness. §§ 1225(b)(1)(A)(i), (iii)(II); § 1182(a)(7). An alien has the opportunity to avoid expedited removal by demonstrating a “credible fear of persecution.” §§ 1225(b)(1)(B)(iii), (v). If the alien is unsuccessful, he may seek “[j]udicial review . . . in habeas corpus proceedings” of “whether [he] is an alien”; “whether [he] was ordered removed” under expedited removal; and “whether [he] can prove by a preponderance of the evidence that [he] is an alien lawfully admitted for permanent residence, has been admitted as a refugee . . . , or has been granted asylum” and “such status [has not] been terminated.” § 1252(e)(2).

This statute bears little resemblance to a suspension as that term was understood at the founding. It does not allow the executive to detain based on mere suspicion of a crime or dangerousness. Rather, it requires a finding that the detainee lacks valid documentation and is not eligible for asylum. It even expressly permits habeas relief for a detainee who does not meet certain criteria for expedited removal.

Some may wish that the Suspension Clause were broader. Perhaps for this reason, our precedents have departed from the original understanding of the Suspension Clause. See, e.g., *Boumediene v. Bush*, 553 U. S. 723, 826–850 (2008) (Scalia, J., dissenting); *St. Cyr*, 533 U. S., at 336–341 (Scalia,

J., dissenting). But this understanding does contain an important guarantee of individual liberty by limiting the circumstances in which Congress may give the executive power to detain without bail or trial based on suspicion of a crime or dangerousness. In this case, that guarantee has not been violated.

JUSTICE BREYER, with whom JUSTICE GINSBURG joins, concurring in the judgment.

The statute at issue here, 8 U. S. C. § 1252(e)(2), sets forth strict limits on what claims a noncitizen subject to expedited removal may present in federal habeas corpus proceedings. I agree that enforcing those limits *in this particular case* does not violate the Suspension Clause's constitutional command: "The Privilege of the Writ of Habeas Corpus shall not be suspended, unless when in Cases of Rebellion or Invasion the public Safety may require it." U. S. Const., Art. I, § 9, cl. 2. But we need not, and should not, go further.

We need not go further because the Government asked us to decide, and we agreed to review, an issue limited to the case before us. The question presented is "whether, *as applied to respondent*, Section 1252(e)(2) is unconstitutional under the Suspension Clause." Pet. for Cert. I (emphasis added). All we must decide is whether, under the Suspension Clause, the statute at issue "is unconstitutional as applied to *this* party, in the circumstances of *this* case." *Chicago v. Morales*, 527 U.S. 41, 74 (1999) (Scalia, J., dissenting).

Nor should we go further. Addressing more broadly whether the Suspension Clause protects people challenging removal decisions may raise a host of difficult questions in the immigration context. What review might the Suspension Clause assure, say, a person apprehended years after she crossed our borders clandestinely and started a life in this country? Under current law, noncitizens who have lived in the United States for up to two years may be placed in expedited removal proceedings, see § 1225(b)(1)(A)(iii),